

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Francis	Team: Squad #06	CCRB Case #: 201801826	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/02/2018 5:00 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 9/2/2019	Precinct: 121
Date/Time CV Reported Fri, 03/02/2018 10:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/07/2018 11:04 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Nicholas Cavalotti	10540	960344	121 PCT
2. POM Christopher Perrone	04100	963693	121 PCT
3. SGT Daniel Tovar	5480	946338	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Cavalotti	Discourtesy: PO Nicholas Cavalotti spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . SGT Daniel Tovar	Discourtesy: Sgt. Daniel Tovar spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Christopher Perrone	Abuse: PO Christopher Perrone refused to provide his name and/or shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Nicholas Cavalotti	Abuse: PO Nicholas Cavalotti refused to provide his name and/or shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

On March 7, 2018, § 87(2)(b) filed this complaint with IAB under log number 2018-8693. IAB referred this case to the CCRB on the same day.

On March 2, 2018 at approximately 6:00pm, PO Nicholas Cavalotti and PO Christopher Perrone of the 121st Precinct responded to a call from § 87(2)(b) at § 87(2)(b) in Staten Island. § 87(2)(b) requested that a grand larceny report be filed for her missing car.

After the officers spoke to the homeowner of § 87(2)(b), § 87(2)(b), along with § 87(2)(b) PO Cavalotti called Sgt. Daniel Tovar via his personal phone for instructions regarding whether he should proceed to file the report. During his phone conversation with Sgt. Tovar, and in the presence of § 87(2)(b) PO Cavalotti stated that § 87(2)(b) looked like a “crackhead.” (**Allegation A: Discourtesy, unsubstantiated**). While on the phone, Sgt. Tovar allegedly told PO Cavalotti “tell her I’m being a dick and she is not getting a report” (**Allegation B: Discourtesy, unsubstantiated**). From where she stood, § 87(2)(b) overheard Sgt. Tovar say this through the telephone. PO Cavalotti then told § 87(2)(b) “He said he’s being a dick” and they will not file a report. (**Subsumed under allegation A: Discourtesy, unsubstantiated**). The officers then left the scene without filing the report.

§ 87(2)(b) called 911 again and requested that the grand larceny report be filed. PO Cavalotti and PO Perrone returned to the scene approximately 45 minutes later, and again told § 87(2)(b) that they would not file the report. § 87(2)(b) asked the officers for their names and shield numbers. PO Perrone and PO Cavalotti laughed, turned their shoulders away from her, and drove away. (**Allegation C and D: Abuse of Authority, unsubstantiated**). No summons was issued or arrest was made.

There is no video footage of this incident available.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Nicholas Cavalotti spoke discourteously to

§ 87(2)(b)

Allegation (B) Discourtesy: Sergeant Daniel Tovar spoke discourteously to

§ 87(2)(b)

It is disputed that on March 2, 2018, PO Cavalotti and PO Perrone drove to § 87(2)(b) in Staten Island to respond to a grand larceny report request for a stolen vehicle. Upon arriving at the scene, both officers briefly spoke with § 87(2)(b), the homeowner of § 87(2)(b) and then spoke with § 87(2)(b) about her vehicle. The officers returned to their patrol car to consult with their patrol supervisor, Sgt. Tovar, over the phone, regarding whether § 87(2)(b)’s complaint merited the filing of a grand larceny report.

§ 87(2)(b) provided several statements regarding this incident. In § 87(2)(b)’s initial narrative (BR 10), which she provided to IAB on March 7, 2018, she made no mention that PO Cavalotti, when speaking with Sgt. Tovar over the phone and in the presence of § 87(2)(b) referred to § 87(2)(b) as a “crackhead.” She did state that Sgt. Tovar told PO Cavalotti over the phone to tell her that he was “being a dick” and that she was not getting a report filed.

In § 87(2)(b)’s telephone statement (BR 01), which she provided to the CCRB on March 16, 2018, she corroborated the testimony that Sgt. Tovar was not on the scene and that he told her that over the phone that he was “being a dick” and not authorizing the filing of a grand

larceny report. § 87(2)(b) again did not mention that PO Cavalotti referred to § 87(2)(b) as a “crackhead.”

However, during her verified interview on March 6, 2018 (BR 02), § 87(2)(b) stated that after PO Cavalotti spoke to § 87(2)(b) he returned to his patrol car and spoke with Sgt. Tovar over the phone. During this call PO Cavalotti referred to § 87(2)(b) as a “crackhead.” § 87(2)(b) maintained that she overheard Sgt. Tovar saying that he was “being a dick” and would not authorize the filing of the report. In addition, it was at this time § 87(2)(b) alleged PO Cavalotti stated “You heard him? He’s being a dick”. § 87(2)(b) specified that Sgt. Tovar never spoke directly to her, but that she was standing close enough to the patrol car to hear what he was saying.

§ 87(2)(b) called 911 on four separate occasions in regards to this incident. During the fourth 911 call (BR 06) § 87(2)(b) told the operator that she was standing in front of the officers and that the officers said “tell them I’m being a dick.”

During a telephone call on June 15, 2018, § 87(2)(b) clarified that PO Cavalotti tilted the phone towards her while Sgt. Tovar stated “Tell her I’m being a dick. Tell her that.” The phone was not on speaker and the area was not busy. This was how § 87(2)(b) was able to overhear Sgt. Tovar speaking on the phone to PO Cavalotti.

§ 87(2)(b) was not present for these allegations and was therefore not interviewed.

PO Cavalotti confirmed that he and PO Perrone returned to their patrol car to consult with Sgt. Tovar regarding whether they should file a grand larceny report for § 87(2)(b)s complaint. § 87(2)(b) was standing very close to the patrol car during the time in which PO Cavalotti called Sgt. Tovar on his personal phone. Sgt. Tovar instructed him not to file the report unless he obtained more information from § 87(2)(b) PO Cavalotti did not repeat any statements made by Sgt. Tovar nor did state that § 87(2)(b) looked like a “crackhead.” After getting off the phone with Sgt. Tovar, he and PO Perrone informed § 87(2)(b) that she would have to call all the tow pounds in the area to try and find her car. They then left the scene.

PO Perrone testified that he was the officer that called Sgt. Tovar regarding whether the officers should file a report. Regardless, he testified that he did not recall if Sgt. Tovar said “tell her I’m being a dick,” did not recall if PO Cavalotti referred to § 87(2)(b) as a “crackhead” or if during the phone call with Sgt. Tovar. Moreover, he did not recall if PO Cavalotti told § 87(2)(b) that Sgt. Tovar said he was “being a dick” and she would not get a grand larceny report.

Sgt. Tovar confirmed that he received a call from PO Cavalotti about filing a grand larceny report for a stolen vehicle. He instructed PO Cavalotti not to file the report due to lack of information for an investigation and to refer § 87(2)(b) to civil court. Sgt. Tovar then hung up the phone. Sgt. Tovar denied telling his officers that he was “being a dick”. Later on that day while he was working at the 121st Precinct stationhouse desk, § 87(2)(b) called Sgt. Tovar directly. He again refused to file the report for her.

§ 87(2)(b) provided several statements regarding this incident. She was consistent that she overheard Sgt. Tovar state over the phone to his officers, “tell them I’m being a dick” and that he would not authorize the filing of a grand larceny report. However, § 87(2)(g) it was allegedly made over the phone and was not on speaker phone. It was only during a call back to § 87(2)(b) on June 15, 2018, that she stated that the phone was tilted in her direction. In previous statements, § 87(2)(b) never mentioned that PO Cavalotti made this gesture. Moreover, it was only during her verified statements that § 87(2)(b) alleged PO Cavalotti informed § 87(2)(b) that Sgt. Tovar stated he was “being a dick” and would not file a report and that PO Cavalotti told Sgt. Tovar that § 87(2)(b) looked

like a “crackhead.” All of the officers interviewed deny that any of these discourteous statements were made. In addition, there were no independent witnesses to these allegations.

§ 87(2)(g)

it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation (C) - Abuse of Authority: Police Officer Christopher Perrone refused to provide his name and/or shield number to § 87(2)(b)

Allegation (D) - Abuse of Authority: Police Officer Nicholas Cavalotti refused to provide his name and/or shield number to § 87(2)(b)

During § 87(2)(b)'s IAB complaint (BR 10) and her CCRB telephone statement (BR01), she did not state that she asked the officers for their names and shield numbers. However, in her verified interview, § 87(2)(b) stated that she asked PO Cavalotti and PO Perrone for their names and shield number after they returned to the scene. The officers turned their shoulders away from her as to obstruct her view of their shields, laughed at her, and drove away. The officers did not make a verbal response to her request.

PO Cavalotti's stated that § 87(2)(b) did not ask him or PO Perrone for their names and shield numbers at any point throughout the interaction. He added that their names and shield numbers were visibly displayed on their uniforms and that they made no efforts to obscure them.

PO Perrone stated that he could not recall if § 87(2)(b) asked him or PO Cavalotti for their names and shield numbers. He also noted that both his and his partner's names and shield numbers were visibly displayed on their uniforms and that they made no attempts to obscure them.

As in allegations A and B, § 87(2)(b) did not make any allegations that PO Cavalotti and PO Perrone failed to provide their names and shield numbers.

§ 87(2)(g)

, it is recommended that **Allegations C and D** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Cavalotti has been a member of service for two years. This is the first CCRB complaint to which he has been a party.
- PO Perrone has been a member of service for one year. This is the first CCRB complaint to which he has been a party.
- Sgt. Tovar has been a member of service for ten years. He has been a subject in three prior investigations: 200902348, 201403734, and 201505845. No allegations were substantiated § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

